

STATE OF MINNESOTA
COUNTY OF HENNEPIN

Yibiao Lu and Jie Hu,

Plaintiffs,

vs.

Fire Insurance Exchange, by and through its
attorney-in-fact Fire Underwriters Association,
doing business as Farmers Insurance,

Defendant.

DISTRICT COURT
FOURTH JUDICIAL DISTRICT

Case Type: Contract

Court File No. 27-CV-26-11606

Judge: Jamie Anderson

**PLAINTIFFS' FIRST SET OF INTERROGATORIES
TO DEFENDANT FIRE INSURANCE EXCHANGE**

TO: Defendant Fire Insurance Exchange, by and through its attorney-in-fact Fire Underwriters Association, and its attorneys of record.

PLEASE TAKE NOTICE that, pursuant to Rules 26 and 33 of the Minnesota Rules of Civil Procedure, Plaintiffs Yibiao Lu and Jie Hu serve the following interrogatories on Defendant, to be answered separately, fully, in writing, and under oath or penalty of perjury within thirty (30) days after service.

DEFINITIONS

"Defendant," "Farmers," "FIE," "You," and "Your" mean Fire Insurance Exchange, its attorney-in-fact Fire Underwriters Association (and, to the extent it acted as attorney-in-fact in connection with The Policy, Farmers Underwriters Association), and each of their present and former agents, adjusters, employees, representatives, attorneys, third-party administrators, and any other person acting or purporting to act on their behalf.

"Fire Insurance Exchange" means that entity only when used alone and spelled in full, and does not include its attorney-in-fact, any affiliate, or any other person within the preceding definition.

"Plaintiffs" means Yibiao Lu and Jie Hu.

"The Answer" means Defendant's Answer to the Complaint, dated and served August 10, 2026.

"The Claim" means Farmers claim number 7007986837-1-1, date of loss July 13, 2024.

"The 2020 Claim" means Farmers claim number 3013539499-1, also shown in Your documents as 3013539499-1-1.

"The February 18, 2022 Settlement Package" means the 11-page document dated February 18, 2022 that You provided to Plaintiff Yibiao Lu concerning The 2020 Claim, consisting of Your two-page letter captioned "Settlement Notice," the one-page "BUILDING LOSS WORKSHEET" headed "This is a complete recap of your claim," and the eight-page estimate that follows, identified on its face as Estimate "YIBIAO_LU2," bearing "Claim Number: 3013539499-1-1" and setting out numbered line items 1 through 32.

"The Policy" means homeowner's Policy 98055-49-65 (shown on Defendant's correspondence as 0980554965), including all endorsements, in force on July 13, 2024.

"The Property" means the insured dwelling at 17756 George Moran Dr., Eden Prairie, Minnesota 55347.

"The November 4, 2024 Claim Outcome Letter" means Your letter to Plaintiffs dated November 4, 2024, captioned "Claim Outcome Letter," signed by Nicholas Brau, Claims Spec Rep Prop, Fire Insurance Exchange, concerning The Claim.

"The Denial Letters" means Your September 3, 2024 letter to Plaintiffs captioned "Claim Outcome Letter" and The November 4, 2024 Claim Outcome Letter.

"The Prieve Report" means the seven-page report of Prieve Engineering, LLC titled "Evaluation of Condition of Windows as Relates to Hail," File Number 241008, report date November 4, 2024, as transmitted with The November 4, 2024 Claim Outcome Letter.

"Photo Appendix A" means the 110-page photographic appendix to The Prieve Report, titled "PHOTO APPENDIX A" and bearing File Number 241008 and site visit date October 9, 2024, containing photographs numbered A-1 through A-217.

"The Recorded Conditions" means each dent, mark, scrape, or indentation that The Prieve Report or Photo Appendix A records at a window or other component of The Property, including downspouts, gutters, flashing, siding, trim board, doors, and screens.

"The Brau Inspection Records" means every Document recording Nicholas Brau's September 6, 2024 inspection of The Property, including any report, handwritten notes, sketches, measurements, photographs, voice memos, and claim-system or portal entries.

"The Inspection-Record Requests" means Plaintiff Yibiao Lu's electronic mail message of October 7, 2025 to You at myadjuster@farmersinsurance.com requesting "a copy of the inspection report/notes from Nic Brau," and his electronic mail message of October 28, 2025 to Nicholas Brau at nic.brau@farmersinsurance.com requesting "a copy of the notes you took that day."

"The 2025 Submissions" means Plaintiffs' submissions to You of January 31, 2025 (post-2020 storm activity and gutter replacement), February 10, 2025 (City of Eden Prairie permit records and the neighbor canvass), and May 28, 2025 (National Weather Service and Interactive Hail Maps material, received directly or through Peter Pietila).

"The Coverage Outcome Attachment" means the document titled "Coverage Outcome – Policy Provisions" transmitted with The November 4, 2024 Claim Outcome Letter.

"The Vendors" means Hancock Claims Consultants, Prieve Engineering, LLC, and any other person You engaged to inspect, evaluate, test, or report on The Property, The Claim, or The 2020 Claim.

"The Vendor Reports" means The Prieve Report and any report, photograph set, field notes, or written findings of Hancock Claims Consultants concerning its August 29, 2024 inspection of The Property.

"The Appraisal Award" means the written appraisal award concerning The Claim dated on or about September 12, 2025.

"The Appraisal Demand" means Plaintiffs' Demand for Appraisal concerning The Claim, dated August 3, 2025.

"The Appraisal" means the appraisal proceeding concerning The Claim commenced by The Appraisal Demand and concluded by The Appraisal Award, including the appraisers John Foster and Greg Tomes and the umpire Wade Roos.

"The Appraisal Items" means each item listed in the item column of The Appraisal Award, each item Plaintiffs submitted in The Appraisal Demand, and any other item for which You contend The Appraisal Award states a value or a loss.

"Handling," when used with respect to a claim, means the receipt, investigation, evaluation, adjustment, supervision, quality-control or peer review, appraisal, payment, and denial of that claim, and includes deciding or approving coverage or payment, setting or approving the scope of any engagement of The Vendors, communicating with The Vendors or any appraiser, and searching for or collecting records concerning that claim.

"Document" and "Documents" have the broadest meaning permitted by Minn. R. Civ. P. 34.01 and include all writings, drawings, graphs, charts, photographs, sound and video recordings, images, and other data or data compilations — including electronically stored information ("ESI") — stored in any medium from which information can be obtained, together with all metadata and all non-identical drafts and copies.

"Communication" means any transmission or exchange of information of any kind, whether oral, written, or electronic, including email, text message, voicemail, letter, memorandum, and claim-system note.

"Person" and "person" mean any natural person or group of natural persons, and any business, legal, or governmental entity of any form, whether or not incorporated, including any corporation, partnership, limited liability company, association, reciprocal or interinsurance exchange, attorney-in-fact, trust, or joint venture.

"Identify" when used with respect to a person, means to state the person's full name, last known title or role, the legal entity that employed or engaged the person at the relevant time, and last known business address, telephone number, and email address, except that for a person presently employed by You it is sufficient to state that person's name, title, employing entity, and that contact is to be made through Your counsel; when used with respect to a document, means to state its type, date, author(s), recipient(s), general subject matter, and present custodian.

"Relating to," "concerning," and "regarding" mean referring to, describing, evidencing, constituting, reflecting, or in any way logically or factually connected with the subject matter of the request.

INSTRUCTIONS

1. Time period. Unless a particular interrogatory specifies otherwise, each interrogatory covers the period January 1, 2020 through the present, except that as to The Policy, its issuance and underwriting, and all claims made at The Property before The Claim, each interrogatory covers the period October 22, 2014 through the present.
2. Manner of answer. Each interrogatory must be answered separately and fully, in writing, and signed under oath or penalty of perjury by an officer or managing agent of Defendant, who must furnish the information available to Defendant. A declaration signed under penalty of perjury must be in the form Minn. Stat. § 358.116 requires. Restate each interrogatory immediately preceding its answer. Minn. R. Civ. P. 33.01(d).
3. Continuing duty. These interrogatories are continuing. You must supplement or correct Your answers in a timely manner as Minn. R. Civ. P. 26.05 requires. If any answer is based on an incomplete search or review, state so expressly in that answer, identify what remains to be searched, and serve Your supplemental answer promptly upon completion.
4. Privilege. If You withhold any information on a claim of privilege or protection, expressly state the claim and provide a privilege log describing the nature of the withheld material in a manner sufficient to enable Plaintiffs to assess the claim, pursuant to Minn. R. Civ. P. 26.02(f).
5. Option to produce records. If You elect to answer any interrogatory by producing business records under Minn. R. Civ. P. 33.03, specify the records to be produced in sufficient detail to permit Plaintiffs to locate and identify them as readily as You could.

6. No responsive information. If no information exists responsive to an interrogatory, state so expressly. If responsive information once existed but no longer exists or cannot be located, state that in the answer, identify the information, and state when and how it was lost or destroyed, who authorized or caused that, and who has had custody of it.
7. Construction. The words "and" and "or" are both conjunctive and disjunctive; "each" includes "every"; and the singular includes the plural and vice versa, as necessary to bring within the scope of each interrogatory all answers that might otherwise be construed to be outside its scope. A term defined in these interrogatories has its defined meaning wherever it appears, whether or not it is capitalized.
8. Attorney-client communications and litigation counsel. No interrogatory seeks information protected by the attorney-client privilege or by Minn. R. Civ. P. 26.02(d). Communications solely between You and Your counsel of record in this action, dated on or after July 8, 2026, need not be described or logged. This paragraph does not excuse the identification or logging of any communication created before that date, including communications created in the handling, investigation, evaluation, or denial of The Claim.
9. Partial objections. If You object to any part of an interrogatory, answer the remainder. Each objection must state whether any responsive information is being withheld on the basis of that objection.
10. Identification of respondents. With Your answers, identify each person who supplied information used in answering, and the interrogatory or interrogatories to which each such person contributed. This instruction supplements, and does not limit, the obligation under Minn. R. Civ. P. 33.01(d) of the officer or managing agent signing the answers to "furnish such information as is available."
11. Dates. A date used to identify a communication, document, or event reflects Plaintiffs' best information and is approximate. If Your records show a different date for a communication, document, or event otherwise matching the description, answer as to that communication, document, or event and state the date Your records show.
12. Answering on behalf of others. If You do not answer on behalf of every person within the definition of "You," state which persons You have excluded, and identify, as to each answer affected, the person who has the information withheld on that basis. Where an interrogatory asks which person or entity performed an act, made a decision, or sent a communication, identify the specific legal entity by name; attributing the act to "Farmers" or "Defendant" collectively is not a complete answer.
13. Item-by-item answers. Where an interrogatory asks about each of several windows, items, or persons, answer separately as to each. A single collective answer that does not address each one is not responsive.

INTERROGATORIES

INTERROGATORY NO. 1: The November 4, 2024 Claim Outcome Letter states, "Our investigation found the condition of the window and components to be from wear/tear as referenced [sic] in the attached engineer report." For each of The Recorded Conditions, state the basis on which You concluded that condition was not covered in the decision communicated in that letter, including the cause and approximate date You attributed to it, each fact and document You relied on, any prior claim and the estimate line item You contend paid for it, and each provision identified in The Coverage Outcome Attachment that You applied.

INTERROGATORY NO. 2: For line item 1 ("R&R Wood window - casement, 12-23 sf," quantity 2.00 EA) of the estimate within The February 18, 2022 Settlement Package, identify, based on all information available to You, the window or sash it covers by location and elevation, and state whether it covers a whole window unit or one or more individual sashes.

INTERROGATORY NO. 3: State what You did in response to The Inspection-Record Requests, including the search performed, the custodians and systems searched, when the search was performed and by whom; each of The Brau Inspection Records that exists or has existed, with its type, date, present location and custodian; and, for any of them not provided to Plaintiffs, the reason it was not provided.

INTERROGATORY NO. 4: For each of The Denial Letters, state whether any review of the decision — including any supervisory, quality-control, or peer review — was performed before the letter issued and, if so, by whom, when, what it consisted of, and what documents it produced; and identify who authorized each letter to be issued.

INTERROGATORY NO. 5: The Answer denies Plaintiffs' allegation at paragraph 33 of the Complaint that The Appraisal Award does not state actual value and loss separately to each item. For each of The Appraisal Items, state the actual value and the loss You contend The Appraisal Award states and where on The Appraisal Award each appears — including, for the item "Windows F1.7 B1.2," whether those values were determined separately for each of the two windows and the amount attributable to each; and state whether You contend The Appraisal Award states separately actual value and loss to each item within the meaning of Minn. Stat. § 65A.01, subd. 3.

INTERROGATORY NO. 6: Describe what You did with each of The Vendor Reports before relying on it in The Claim, including each person involved and what each did, each document created, and any written policy or procedure that applied to those steps, identified by title and date.

INTERROGATORY NO. 7: State each fact supporting Your First Affirmative Defense in The Answer, which alleges that "pursuant to Rule 12, Minn. R. Civ. P., there exists a lack

of jurisdiction over Defendant FIE and Plaintiffs have failed to state a claim upon which relief can be granted," including whether the jurisdictional allegation refers to subject-matter jurisdiction, personal jurisdiction, or both, and each count of the Complaint to which the failure-to-state allegation is directed; and, if You contend that any person should be a defendant in this action in place of or in addition to Fire Insurance Exchange, or that Fire Insurance Exchange is misnamed or misdescribed in the caption, identify that person by legal name, form, and state of organization.

INTERROGATORY NO. 8: Identify each person known to You to have knowledge of facts concerning the Handling of The Claim or The 2020 Claim, any inspection of The Property, The Appraisal, or The Denial Letters, whether or not that person is presently employed by You, and state the subject matter of each person's knowledge and the period of that person's involvement. This interrogatory is not limited to persons You may use to support Your claims or defenses within the meaning of Minn. R. Civ. P. 26.01(a)(1)(A).

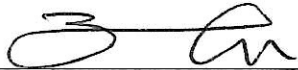
INTERROGATORY NO. 9: Identify each document or other information concerning The Claim, The 2020 Claim, or The Property — including The Brau Inspection Records — that You contend no longer exists or cannot be located, including for each its type, date, author, and subject matter, when and how it ceased to exist or became unlocatable, who authorized or caused that, each person who has had custody of it, and any records-retention policy or schedule under which it was not preserved.

INTERROGATORY NO. 10: State what You did with each of The 2025 Submissions, including each person involved, when, the conclusion reached, each document recording it, whether it was considered in any decision on The Claim, and, if nothing was done, why.

INTERROGATORY NO. 11: As to Your assertion in The Answer, responding to paragraph 14 of the Complaint, that Plaintiffs "attempted to direct the claim-handling process by adamantly advising Hancock Claims Consultants that the only thing that needed to be inspected was the windows on the inside where they were leaking," state who made and who received that statement, when and how, including each document recording it, the person who first recorded it, and whether Hancock's August 29, 2024 inspection was limited as a result and, if so, what was not inspected; and state whether You contend that statement was a basis for Your September 3, 2024 statement that "[t]here were no other damages observed."

INTERROGATORY NO. 12: State the date You contend You first anticipated litigation concerning The Claim, identifying who made that determination, what prompted it, and the first document in Your claim file that You contend was prepared in anticipation of litigation or for trial within the meaning of Minn. R. Civ. P. 26.02(d); and state the date any litigation hold or preservation instruction concerning The Claim or this action was issued, to whom it was directed, and what it directed to be preserved.

Dated: September 20, 2026.



Yibiao Lu, Plaintiff *pro se*

17756 George Moran Dr.

Eden Prairie, MN 55347

Telephone: 763-843-2859

Email: bill_y_lu@yahoo.com



Jie Hu, Plaintiff *pro se*

17756 George Moran Dr.

Eden Prairie, MN 55347

Telephone: 763-843-2860

Email: jie_h_hu@yahoo.com

CERTIFICATE OF SERVICE

I, Yibiao Lu, Plaintiff *pro se*, state that on September 20, 2026, I served a true and correct copy of *Plaintiffs' First Set of Interrogatories to Defendant Fire Insurance Exchange* upon Defendant's counsel of record, by electronic mail in the manner the parties have agreed, as a PDF attachment sent from bill_y_lu@yahoo.com to:

Kevin J. Kennedy — kkennedy@kennedy1f.com

Mary J. Baskfield — mbaskfield@kennedy1f.com

KENNEDY LAW FIRM P.C., *Counsel for Defendant Fire Insurance Exchange*

Minn. R. Civ. P. 5.02(b); Minn. Gen. R. Prac. 14.03(d)(2). These discovery requests are served, not filed. Minn. R. Civ. P. 5.04(b).

I declare under penalty of perjury that everything I have stated in this document is true and correct. Minn. Stat. § 358.116.

Dated: September 20, 2026, at Eden Prairie, Hennepin County, Minnesota.



Yibiao Lu, Plaintiff *pro se*